

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

John R. Gaskey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to abusive practices to change sexual orientation and gender identity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>4/4/2025</i>
<i>Kari MacRae</i>	<i>41 Yearling Run Rd, Bourne, MA 02532</i>	<i>4/4/2025</i>

HOUSE No.

By Representative Gaskey of Carver, a petition (subject to Joint Rule 12) of John R. Gaskey and Kari MacRae for legislation to establish penalties for certain health care providers providing sexual orientation and gender identity change medical procedures. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to abusive practices to change sexual orientation and gender identity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 MA general law c.12 § 11I 1/2, which states under (b) "Access to reproductive health
2 care services and gender-affirming health care services is a right secured by the constitution and
3 laws of the commonwealth. Interference with this right, whether or not under the color of law, is
4 against the public policy of the commonwealth." With "gender-affirming health care services"
5 defined in (a) as "all supplies, care and services of a medical, behavioral health, mental health,
6 surgical, psychiatric, therapeutic, diagnostic, preventative, rehabilitative or supportive nature
7 relating to the treatment of gender dysphoria.

8 Purpose: This act is meant to adjust the practice of providing gender change healthcare
9 and sex trait modification to minors and provide proper preparation for any adult seeking sex
10 trait modification.

11 Chapter 112 of the General Laws is hereby amended by adding the following section:-

Section 275. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:-

“Sexual orientation and gender identity change efforts”, any practice by a health care provider that attempts or purports to impose change of an individual’s sexual orientation or gender identity including, but not limited to, efforts to change behaviors or gender expressions or to eliminate or reduce sexual or romantic attractions or feelings toward individuals of the same sex; provided, however, that “sexual orientation and gender identity change efforts” shall not include practices that: (i) (A) provide acceptance, support and understanding of an individual's sexual orientation, gender identity, gender expression, or biological sex recognized at birth; (B) facilitate an individual’s coping, social support and identity exploration and development; or (C) are sexual orientation-neutral or gender identity-neutral, including interventions to prevent or address unlawful conduct or unsafe sexual practices; and (ii) do not attempt or purport to impose change of an individual's sexual orientation, gender identity, or biological sex recognized at birth.

"Sex trait modification", all medical practices of a hormonal, pharmaceutical, or surgical nature which seek to mimic or alter the appearance, function, or presence of primary and secondary sexual characteristics in effort to ameliorate gender dysphoria, gender incongruence, or any other gender identity-related distress.

(b) A health care provider shall identify and provide proper health care in line with the biological sex of a patient. If the patient is under the age of 18, or 18 and still enrolled in secondary school, healthcare providers shall engage with parents to determine the source of any gender dysphoria and partner with any additional medical professionals to ensure the patient is

able to successfully navigate puberty and progress through the age of maturation based only on the biological sex recognized at birth.

(b)(1) Health Insurance providers covering an individual who is listed as a minor family member of a policy holder, shall not provide sexual orientation and gender identity change efforts coverage except in the mental health of the patient to navigate puberty and achieve adulthood based only on the biological sex recognized at birth.

(b)(2) Healthcare providers shall provide all documentation relating to medications and course of treatment, including, but not limited to, side effects and length of time a patient who is seeking sexual orientation and gender identity change services will be required to take medication and the cost of those medications for the entirety of the course of treatment/therapy.

(b)(3) No sexual orientation and gender identity change medical procedures aimed at altering sex or gender that involve surgical interventions or the use of medication (i.e. hormone therapy, puberty blockers, et al.) shall be administered to any patient under the age of 19 that is still enrolled in secondary school, however patients 18 years and older, having graduated from secondary school, seeking sexual orientation and gender identity change medical procedures and interventions must utilize mental health therapy for a minimum of 6 months from initial request for sexual orientation and gender identity change intervention. Additionally, no surgical procedure shall be performed on any person 18 years or older, that are no longer enrolled in secondary school, seeking sexual orientation and gender identity change therapy unless they utilize mental health therapy for a minimum of 12 months from initial request for sexual orientation and gender identity change surgery.

(b)(4) Healthcare insurers shall not be required to cover medication or surgical procedures for sexual orientation and gender identity change therapy.

(c) Enforcement:

(c)(1) Any healthcare provider determined by a court of law to have violated the above act shall be fined a minimum \$10,000.00 for the first offense and each violation thereafter.

(c)(2) If a second offense occurs, as determined by a court of law, healthcare providers shall surrender their license to practice to the appropriate governing body for a minimum of 5 (five) years.

(c)(3) A third offense shall terminate a healthcare provider's license permanently and a minimum 5 year sentence to prison will be imposed.